

HOUSE No. 5616

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 29, 2026.

The committee on Ways and Means, to whom was referred the Bill authorizing the Massachusetts Department of Transportation to take easements over certain land located in the city of Woburn and the town of Burlington held in trust by the city of Boston for the Mary P. C. Cummings Testamentary Trust for highway purposes (House, No. 5541), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 5616).

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the Massachusetts Department of Transportation to take easements over certain land located in the city of Woburn and the town of Burlington held in trust by the city of Boston for the Mary P. C. Cummings Testamentary Trust for highway purposes.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to authorize forthwith the commonwealth, acting by and through its department of transportation to take certain easements for highway purposes, to support the intersection improvement project being undertaken by the commonwealth at the intersection of Cambridge road at South Bedford street and Bedford road in the city of Woburn and the town of Burlington, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, the
2 commonwealth, acting by and through the Massachusetts Department of Transportation, may
3 take for highway purposes, certain parcels of land located in the city of Woburn and the town of
4 Burlington, held in trust by the city of Boston’s Treasury department, being temporary
5 construction areas of 4,603 square feet and permanent easements of 8,917 square feet and shown
6 on a plan of land entitled “Massachusetts Department of Transportation Highway Division
7 Intersection Improvement Project Cambridge Road at South Bedford Street and Bedford Road in
8 the city and town of Woburn/Burlington, Middlesex County Preliminary Right of Way Plans”,

9 dated May 27, 2026, to be filed with the chief engineer of the highway division of the
10 Massachusetts Department of Transportation and recorded with the Middlesex north registry of
11 deeds.

12 SECTION 2. In anticipation of and as planned mitigation for the takings described in
13 section 1 and to ensure a no-net-loss of land subject to Article 97 of the Amendments to the
14 Constitution of the Commonwealth, during the May 25, 2025 approval of a special permit to
15 Jumbo Self Storage, LLC - Jumbo Capital Management for land being located at 7 Wheeler road
16 in the town of Burlington and shown on the town's assessor's Map 52 as parcels 4 and 6, the
17 town of Burlington required that land be set aside for future improvements to the intersection of
18 Cambridge road at South Bedford street and Bedford road to satisfy Article 97. The town of
19 Burlington further accepted a conservation restriction from Wheeler Self Storage, LLC on the
20 Wheeler road property containing approximately 9 acres, recorded with the Middlesex south
21 registry of deeds at book 78014, page 433. As described in conditions G and H of a special
22 permit decision granted by the town of Burlington's planning board and recorded with the
23 Middlesex south registry of deeds at book 71169 and page 469, said conveyance was specifically
24 intended to be mitigation for the transfer described in section 1 and the Mary Cummings Trust,
25 by and through the city of Boston, does not oppose the mitigation proposed by the Massachusetts
26 Department of Transportation.

27 SECTION 3. The Massachusetts Department of Transportation shall assume all costs
28 associated with engineering, surveys, appraisals, deed preparation and other expenses necessary
29 to execute the takings authorized by this act.